

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Paul Baron	Team: Team # 4	CCRB Case #: 200912522	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 08/08/2009 7:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/8/2011	Precinct: 44		
Date/Time CV Reported Sat, 08/08/2009 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/13/2009 2:08 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Rolando Carbonell	06831	928017	NARCB BX
2. DT3 Ariel Ortiz	04619	933035	NARCB BX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT David Bullett	00021	926614	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Rolando Carbonell	Abuse: Det. Rolando Carbonell threatened to arrest § 87(2)(b) and individuals.	A . Substantiated
B . DT3 Rolando Carbonell	Abuse: Det. Rolando Carbonell threatened § 87(2)(b) with the use of force.	B . Alleged Victim Uncooperative
C . DT3 Rolando Carbonell	Abuse: Det. Rolando Carbonell entered and searched § 87(2)(b)	C . Exonerated
D . DT3 Ariel Ortiz	Abuse: Det. Ariel Ortiz entered and searched § 87(2)(b)	D . Exonerated
E . DT3 Rolando Carbonell	Discourtesy: Det. Rolando Carbonell spoke obscenely to § 87(2)(b) and individuals.	E . Unsubstantiated
F . DT3 Rolando Carbonell	Abuse: Det. Rolando Carbonell refused to provide his name and shield number to § 87(2)(b)	F . Unsubstantiated
G . DT3 Rolando Carbonell	Abuse: Det. Rolando Carbonell drew his gun.	G . Exonerated
H . DT3 Rolando Carbonell	Off. Language: Det. Rolando Carbonell made remarks to § 87(2)(b) based upon race.	H . Unfounded

Case Summary

§ 87(2)(b) filed a complaint by telephone with IAB on August 8, 2009 (enc. 5), and the complaint was received by the CCRB on August 13, 2009 (enc. 6). On August 8, 2009, at approximately 7:30 pm, Det. Rolando Carbonell and Det. Ariel Ortiz approached § 87(2)(b) and interacted with several civilians. The following allegations resulted from the officers' actions:

- **Allegation A- Abuse of Authority:** Det. Rolando Carbonell threatened to arrest § 87(2)(b) and individuals. § 87(2)(g) It is recommended that **Allegation A** be **substantiated**.
- **Allegation B- Abuse of Authority:** Det. Rolando Carbonell threatened § 87(2)(b) with the use of force. § 87(2)(g) it is recommended that **Allegation B** be closed as **Victim Uncooperative**.
- **Allegation C- Abuse of Authority:** Det. Rolando Carbonell entered and searched § 87(2)(b)
- **Allegation D- Abuse of Authority:** Det. Ariel Ortiz entered and searched § 87(2)(b) § 87(2)(g) It is recommended that **Allegations C and D** be **exonerated**.
- **Allegation E- Discourtesy:** Det. Rolando Carbonell spoke obscenely to § 87(2)(b) and individuals. § 87(2)(g) It is recommended that **Allegation E** be **unsubstantiated**.
- **Allegation F- Abuse of Authority:** Det. Rolando Carbonell refused to provide his name and shield number to § 87(2)(b) § 87(2)(g) It is recommended that **Allegation F** be **unsubstantiated**.
- **Allegation G- Abuse of Authority:** Det. Rolando Carbonell drew his gun. § 87(2)(g) It is recommended that **Allegation G** be **exonerated**.
- **Allegation H- Offensive Language:** Det. Rolando Carbonell made remarks to § 87(2)(b) based upon race. § 87(2)(g) it is recommended that **Allegation H** be **unfounded**.

Results of Investigation

Civilian Statement(s)

- **Complainant/Victim:** § 87(2)(b) § 87(2)(b) -years-old, black, female, § 87(2)(b), black hair, brown eyes; § 87(2)(b)

911/IAB Phone Call Transcription

§ 87(2)(b) called 911 at 7:34 PM on August 8, 2009 and was transferred to IAB (enc. 19D). § 87(2)(b) tells the operator that two police officers ran in the house and they don't have a warrant. § 87(2)(b) states that no one ran in the house, followed by an unknown male voice stating "yes he did, yes he did." § 87(2)(b) starts to argue with an officer and states, "you need a warrant," followed by unknown male officer stating "actually, if somebody runs into your house, we don't need a warrant. Learn your law." § 87(2)(b) states that the officer says he's going to "arrest everyone in here." § 87(2)(b) states to IAB that Sgt. Bullett is present; he can be heard

stating his own name. § 87(2)(b) states aloud “this guy right here, I need his number.” § 87(2)(b) states that the officer said “so what, my captain is coming, you talk to him.” § 87(2)(b) states that she asked the officer, “Why are you hiding your badge number?” His man had his badge out and I saw 4619.” § 87(2)(b) tells IAB, “he still won’t give his name or nothing...he just walked away,” followed by Sgt. Bullett stating “I’m trying to tell you, I’m his supervisor, I’ll provide you with all the information you need.” § 87(2)(b) responds to Sgt. Bullett “why couldn’t he give it to me, why does he have his badge...why does he run up in here and tell me he’s not giving shit and he’ll arrest everyone.” Sgt. Bullett states “I don’t want him down here; it’s just going to escalate matters.” (No one can be heard using the word “fuck” during the call.)

CCRB Statements

§ 87(2)(b) provided a phone statement to the CCRB on August 17, 2009 and was interviewed at the CCRB on August 21, 2009 (enc. 7). She reported that on August 8, 2009 at 7:30 pm, she was inside of § 87(2)(b) home, at § 87(2)(b) § 87(2)(b) in the Bronx. They received a phone call from § 87(2)(b) who stated that some men ran into § 87(2)(b) where § 87(2)(b) lived with § 87(2)(b) § 87(2)(b). § 87(2)(b) is § 87(2)(b)’s nephew. § 87(2)(b) and her brother walked outside, where they observed § 87(2)(b) and several young children. § 87(2)(b) stated that officers ran inside of § 87(2)(b) stating they were chasing a subject. § 87(2)(b) is two houses to the south of § 87(2)(b) § 87(2)(b) is a three story private house with steps leading up to a porch; there is a metal gate in front of the house that has a lock (see enc. 4 for photos).

§ 87(2)(b) proceeded to enter § 87(2)(b). When she went inside, she observed two officers coming down the stairwell at the end of the hallway. § 87(2)(b) was coming down the stairs behind the officers, yelling “I can’t believe this; you all can’t be running up in here.” § 87(2)(b) was yelling about the officers needing a warrant. § 87(2)(b) asked the officers who they were a few times and Det. Carbonell repeatedly responded, “None of your fucking business.” Det. Carbonell stated that someone ran inside of the building and they needed to find him. § 87(2)(b) never observed any officers with their guns drawn. Det. Carbonell told § 87(2)(b) that if she did not shut up, he would arrest her.

At some point, § 87(2)(b)’s daughter, § 87(2)(b) arrived and stood outside of § 87(2)(b). § 87(2)(b) asked to see Det. Carbonell’s badge. Det. Carbonell told her to speak to his supervisor. As Det. Carbonell exited the building, he continued to curse at everyone that was present. Det. Carbonell stated “all you motherfuckers, you could stop what I’m doing. Someone ran up here and you all know it, I could arrest all of you motherfuckers, all of you sons of bitches.” Det. Carbonell did not provide a description of who ran inside the building and told § 87(2)(b) “You want to talk to anyone, talk to the big boy; bitch.” Sgt. Bullett walked towards the building from the corner of § 87(2)(b) and § 87(2)(b). § 87(2)(b) admitted to cursing in front of the officers, stating “this is bullshit,” but stated she never used the word “fuck.” § 87(2)(b) told Det. Carbonell, “If you don’t want to show me your badge, I’m going to call the police on you.” § 87(2)(b) called 911 and was transferred to IAB. § 87(2)(b) spoke to Sgt. Bullett, who apologized for Det. Carbonell’s actions, but § 87(2)(b) stated she wanted to hear Det. Carbonell apologize. Det. Carbonell returned to the front of § 87(2)(b) with an envelope in his hand, stating, “Look now bitch, I made a bust.” Det. Carbonell also called § 87(2)(b) a “stupid black bitch,” after she stated that he didn’t make the busts inside of the house. Someone told § 87(2)(b) that the two people arrested were; § 87(2)(b) § 87(2)(b) (her cousin), and § 87(2)(b). Det. Carbonell stated “I know you all know who it [the third person] is; you motherfuckers are all family.” No one was summonsed or arrested at the incident location.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-year-old Hispanic female.

§ 87(2)(b) provided a phone statement to the CCRB on September 26, 2009 (enc. 11). She reported that on August 8, 2009 at 7:30 pm, she was outside of her home at § 87(2)(b) in the

Bronx. § 87(2)(b) was with her sister in law, § 87(2)(b) and § 87(2)(b) along with several children. § 87(2)(b) observed officers arresting individuals at the corner of § 87(2)(b) and § 87(2)(b). Ten minutes later, Det. Carbonell and Det. Ortiz approached § 87(2)(b) and told the civilians that they were chasing a subject that ran into the building. § 87(2)(b) did not observe anyone run from the officers or enter her building. Det. Carbonell and Det. Ortiz entered the front gate and attempted to enter the front door of the house. Det. Carbonell stated that he would arrest all the civilians at the location if they did not turn over the subject that had ran. Det. Carbonell never removed his gun from his holster. § 87(2)(b) believed that someone inside the home opened the front door, because she did not observe anyone else outside. Det. Carbonell and Det. Ortiz entered the home and § 87(2)(b) remained outside. The officers were inside for about five minutes.

§ 87(2)(b) had been next door at § 87(2)(b) and came to § 87(2)(b) as the officers were leaving the house. § 87(2)(b) approached Det. Carbonell and Det. Ortiz outside of § 87(2)(b) and asked what happened and what they were doing there. Det. Carbonell told § 87(2)(b) to mind her “fucking” business. Det. Carbonell stated they were in pursuit of a subject that had wounded a “fucking” officer. § 87(2)(b) and § 87(2)(b) both raised their voices and cursed, but did not do so until after Det. Carbonell cursed at them. Det. Carbonell and Det. Ortiz left the location and then came back with Sgt. Bullett. § 87(2)(b) called IAB and was on the phone with them when Sgt. Bullett approached her. Det. Carbonell and Det. Ortiz repeatedly went back and forth between § 87(2)(b) and the corner where the arrests occurred. § 87(2)(b) never heard an officer threaten to shoot a civilian.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old black female.

§ 87(2)(b) was interviewed at § 87(2)(b) on September 22, 2009 (enc. 10). She reported that on August 8, 2009 at 7:30 pm, she was outside of § 87(2)(b) with § 87(2)(b) and several young children. Two plain clothes officers approached the front gate of § 87(2)(b) coming from § 87(2)(b), and Det. Carbonell told the women “Open the fucking gate. I know he’s here.” § 87(2)(b) did not observe anyone run from the officers or enter § 87(2)(b) before the officers arrived. The women told the officers that they needed a warrant. Det. Carbonell stated that if they did not open the gate, he would call for backup. Det. Carbonell placed his hand on his holstered gun and § 87(2)(b) opened the gate for him. Det. Carbonell approached the front steps to the house, asked if anyone had keys to the home, and told the civilians to open the “fucking” door. § 87(2)(b) opened the front door from inside of the house and asked what was going on. Det. Carbonell told § 87(2)(b) to stand still or he would shoot him. § 87(2)(b) told the officers they could not go inside of his home and stood in front of them. Det. Ortiz called § 87(2)(b) over to the side of the door and then Det. Carbonell ran inside the home, yelling “where is he?” Det. Ortiz and § 87(2)(b) followed him inside.

§ 87(2)(b) went to § 87(2)(b) to get § 87(2)(b). § 87(2)(b) approached and entered § 87(2)(b). Det. Carbonell came back outside of the house and said “all of you are getting fucking arrested.” § 87(2)(b) requested Det. Carbonell’s name and asked what happened. Det. Carbonell stated he did not need to show his “fucking” ID. Det. Carbonell told § 87(2)(b) to speak to his supervisor. None of the officers ever had their shields visible during the incident. Det. Carbonell left the location and went to the corner of § 87(2)(b) and § 87(2)(b). Sgt. Bullett arrived at the front of the house and told the civilians that they were in “hot pursuit” and that they did not need a search warrant. § 87(2)(b) called IAB and Sgt. Bullett asked her questions while she was talking into the phone. Det. Carbonell returned to § 87(2)(b) with property he obtained and stated he had found drugs, saying the evidence was “right fucking here.” At the end of the incident, officers gave someone’s personal belongings to § 87(2)(b).

Witness: § 87(2)(b)

- § 87(2)(b) -year-old Hispanic male, black hair, brown eyes; § 87(2)(b).

§ 87(2)(b) was interviewed at § 87(2)(b) on September 22, 2009 (enc. 8). He reported that on August 8, 2009 at 7:30 pm, he was standing in front of § 87(2)(b) when he observed Det. Carbonell chasing an unknown black male. The male entered a building about 2-3 houses over from § 87(2)(b)'s store, towards § 87(2)(b). Det. Carbonell approached the front gate of the house that the male entered. § 87(2)(b) exited from the front of the house and argued with Det. Carbonell outside of the home. § 87(2)(b) did not believe that the officers ever entered the front gate. § 87(2)(b) stated that he heard Det. Carbonell threaten to arrest § 87(2)(b) but did not provide the exact phrase. Two other plain clothes officers responded to the front of § 87(2)(b)'s home. § 87(2)(b) never heard anyone curse or use offensive language, though he heard § 87(2)(b) and Det. Carbonell argue about a search warrant. § 87(2)(b) never saw an officer un-holster his gun. § 87(2)(b) stated that he did not know the individuals that lived in the home.

Witness- § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) -year-old black male; he is the brother of § 87(2)(b)

§ 87(2)(b) was interviewed at § 87(2)(b) on September 22, 2009 (enc. 9). He reported that on August 8, 2009 at 7:30 pm, he was inside of his home at § 87(2)(b) in the Bronx. § 87(2)(b) was notified that officers were interacting with his family members next door at § 87(2)(b). Someone told him that the officers had entered § 87(2)(b). § 87(2)(b) exited his home and observed Det. Ortiz completely outside of § 87(2)(b) and Det. Carbonell coming down the front stairs. § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were also outside. § 87(2)(b) observed Det. Carbonell with his gun out of its holster, but did not remember where Det. Carbonell held it. Det. Carbonell cursed repeatedly during the interaction, while arguing with § 87(2)(b)'s sister, § 87(2)(b) and § 87(2)(b). § 87(2)(b) remembered Det. Carbonell telling people to "shut the hell up." Det. Carbonell told the civilians that he could lock all of them up.

Attempts to Contact Civilians (enc. 29)

The only phone number provided for § 87(2)(b) was the same as that for § 87(2)(b). They were each mailed two contact letters, which were not returned. They were not present when the location was canvassed on September 22, 2009. The undersigned left several voicemails for § 87(2)(b) and § 87(2)(b) requesting they have § 87(2)(b) and § 87(2)(b) call the CCRB. The undersigned spoke with § 87(2)(b) on December 8, 2009; she stated she would provide a statement and call back to schedule an interview. She was left three subsequent voicemails and never contacted the CCRB. § 87(2)(b) was never reached.

NYPD Statement(s):

Subject Officer: DET. ROLANDO CARBONELL

- § 87(2)(b) -years-old, Hispanic male, black hair, brown eyes, § 87(2)(b).
- Bronx Narcotics- 2:27 pm to 11:00 pm on August 8, 2009, arresting officer for buy and bust operation with Det. Ortiz, plainclothes, unmarked green van, § 87(2)(b).

Memo Book

2000- 2 males under arrest, 1 male fled- a) § 87(2)(b) b) § 87(2)(b) c) un-apprehended- When Det. Ortiz attempted to place the un-apprehended male under arrest, the male created a distraction with an infant girl he knew and fled. Male ran into § 87(2)(b); male was lost inside that location during a foot pursuit- an open 61 was generated (enc. 13).

CCRB Statement

Det. Carbonell was interviewed at the CCRB on October 22, 2009 (enc. 14). He stated that on August 8, 2009 at approximately 7:30 pm, he was with Det. Ortiz near the corner of § 87(2)(b) and § 87(2)(b). Det. Carbonell observed a sedan pull up to the corner and a black male (the “seller,” 5’9” and thin build) approached the sedan. The “seller” handed the driver of the vehicle a brown paper bag. The officers approached the vehicle and had § 87(2)(b) and § 87(2)(b) exit the vehicle. Det. Carbonell opened the bag, determined it contained ecstasy pills and called for back up. A fourth male walked towards the car along with a § 87(2)(b)-old girl. The “seller” grabbed the girl, pushed her towards Det. Ortiz, and ran away towards § 87(2)(b). The officers did not pursue the “seller” because they remained with § 87(2)(b) and § 87(2)(b). When the “seller” realized he was not being followed, he slowed down and entered through the gate to § 87(2)(b) and went up the front steps, at which point Det. Carbonell lost sight of him. Sgt. Bullett and Det. Paradiso arrived at the corner within a few minutes of the “seller” fleeing the location. Det. Carbonell handed off § 87(2)(b) and § 87(2)(b) to them and ran to § 87(2)(b) with Det. Ortiz. The front gate had been wide open when he approached. Det. Carbonell went through the gate and observed one heavyset adult female and several children in the front yard. Det. Carbonell told the unidentified female they were chasing a male that ran to the location and the female stated that no one was there. He never threatened to arrest any civilians, because none of them had done anything and he was only looking for the male that had fled.

Det. Carbonell and Det. Ortiz went up the front steps of the house and knocked on the door. § 87(2)(b) opened up the front door; Det. Carbonell identified her from her photo. Det. Carbonell did not threaten to shoot any individuals at any point during the incident. Det. Carbonell identified himself as a detective and stated that he had just observed a male suspect run inside the house. Det. Carbonell and Det. Ortiz had their shields visible on chains. No civilian ever asked Det. Carbonell or Det. Ortiz to provide their name and shield information. § 87(2)(b) told the officers that no one had gone inside of the house. Det. Carbonell told § 87(2)(b) that the male was a dangerous person and he wanted to help her. She told the officers they could look inside to see that no one was around. Det. Carbonell and Det. Ortiz entered the home, and stayed in the foyer. They only entered the home because they were given permission to do so. Det. Carbonell removed his gun from his holster and held it by his side, for safety reasons, because people that flee often do so to obtain weapons. He never raised his gun above his waist. § 87(2)(b) came into the main room and § 87(2)(b) became agitated, yelling and telling the officers that no one had been around and that she wanted them out of the house. Det. Carbonell asked § 87(2)(b) if he saw some one enter the home, and he said no. Det. Carbonell asked § 87(2)(b) and § 87(2)(b) if they knew § 87(2)(b) or § 87(2)(b) and they said no. Det. Carbonell and Det. Ortiz exited the house because § 87(2)(b) rescinded her permission. They never went anywhere besides the foyer. Det. Carbonell holstered his gun before he exited the home and never took it back out of its holster. § 87(2)(b) cursed and yelled at the officers and called IAB. Sgt. Bullett talked with § 87(2)(b). No one ever mentioned search warrants in front of Det. Carbonell. Det. Carbonell and Det. Ortiz went back to the corner of § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) approached Det. Carbonell to pick up the property of one of the defendants, which was handed over to § 87(2)(b). § 87(2)(b) spoke with § 87(2)(b) who was outside of § 87(2)(b). § 87(2)(b) with the young girl that had been used by the “seller” as a diversion. Det. Carbonell never called § 87(2)(b) a “black bitch.” He never threatened to use force against any civilians. Det. Carbonell never cursed at any point during the incident. The “seller” has not been apprehended.

Subject Officer: DET. ARIEL ORTIZ

- § 87(2)(b)-year-old Hispanic male, brown hair, brown eyes, § 87(2)(b)
- Bronx Narcotics- 2:27 pm to 11:00 pm on August 8, 2009, buy and bust operations with Det. Carbonell, plainclothes, assigned to unmarked black sedan.

CCRB Statement

On October 28, 2009, the CCRB interviewed Det. Ariel Ortiz (enc. 15-16). Det. Ortiz confirmed Det. Carbonell's statement regarding what occurred before Sgt. Bullett arrived at the scene. Det. Carbonell and Det. Ortiz immediately pursued the subject after the back up unit arrived. Det. Carbonell and Det. Ortiz walked through the wide open front gate, where they observed an unknown black female and several children. Det. Carbonell and Det. Ortiz walked up the front steps and Det. Carbonell knocked on the front door. Det. Ortiz never heard Det. Carbonell threaten to shoot or kill any civilians outside of the home. He never threatened any civilian with force. § 87(2)(b) opened the front door and Det. Carbonell identified himself as a police officer; the officers' shields were visible on chains. Det. Carbonell told § 87(2)(b) that they were looking for a male involved in a drug transaction that they believed had fled into the building. § 87(2)(b) told them that no one had come inside the home and said "you could look around." Det. Carbonell and Det. Ortiz stepped into the foyer inside of the home. Det. Ortiz stated they would not have entered the home without permission. Det. Carbonell un-holstered his gun and held it at his leg, because he did not know if the "seller" would be armed. He never raised his gun above his waist and never had it un-holstered outside of the home. Det. Ortiz never removed his gun from its holster. § 87(2)(b) approached from the foyer and spoke with Det. Carbonell. § 87(2)(b) yelled at Det. § 87(2)(b) "I don't want cops here; you see there's no one here; get the fuck out of here." Det. Carbonell holstered his weapon and the officers left the home. The officers did not leave the foyer area. § 87(2)(b) continued to curse and yell at the officers as they left the home. Det. Ortiz never heard anyone discuss warrants at any point during the incident. He was played audio from § 87(2)(b)'s 911 call at the point when § 87(2)(b) stated "you need a warrant" followed by a male voice stating "if someone ran into your house we don't have to get a warrant, learn your law." Det. Ortiz stated he did not recognize the voice, but it was not his own. Det. Ortiz never heard any civilian ask for an officer's name or shield number. Sgt. Bullett approached the home and started speaking with § 87(2)(b) to calm her down. Det. Ortiz did not hear any officer curse at the incident location. He did not hear Det. Carbonell threaten to arrest any civilians at the incident location and did not observe any civilians commit any arrestable offenses. Det. Ortiz did not observe Det. Carbonell return to § 87(2)(b) after having left the incident location. Det. Ortiz did not hear Det. Carbonell call anyone a "black bitch." Det. Ortiz never heard any officer mention that they were in "hot pursuit" of a suspect.

Witness Officer: SGT. DAVID BULLETT

- § 87(2)(b) -year-old white male, brown hair, hazel eyes, § 87(2)(b)
- Bronx Narcotics, 2:30 PM to 11:05 PM on August 8, 2009, partnered with Det. Paradiso, plainclothes, assigned to an unmarked Ford Escape.

CCRB Statement

On October 22, 2009, the CCRB interviewed Sgt. David Bullett (enc. 17-18). His memo book entries were consistent with Det. Carbonell and additionally stated that all MOS were identified to the civilians. He stated that on August 8, 2009 at approximately 7:30 PM, Sgt. Bullett was with Det. Paradiso when they received a call to back up Det. Carbonell and Det. Ortiz at § 87(2)(b) and § 87(2)(b). Sgt. Bullett responded to the location within a minute and was told by the officers that they had two people under arrest and a third person had fled, in the direction of § 87(2)(b). Sgt. Bullett took control of § 87(2)(b) and § 87(2)(b) and Det. Carbonell and Det. Ortiz pursued the suspect. Sgt. Bullett did not observe Det. Carbonell and Det. Ortiz enter the gate to § 87(2)(b) but he observed them go up the steps of the house. He never observed either officer draw his gun. The officers were inside of the home for less than a minute. Sgt. Bullett observed Det. Carbonell and Det. Ortiz exit the house, followed by § 87(2)(b). He could not recall how many other civilians were outside of the home, but remembered that several children were present. § 87(2)(b) screamed at the officers and talked into her phone, but Sgt. Bullett could not hear what § 87(2)(b) said. Det. Carbonell and Det.

Ortiz walked across the street to Sgt. Bullett and told him that they had received permission to go into the house, which was later rescinded. Sgt. Bullett approached § 87(2)(b) and spoke with her. § 87(2)(b) stated that there had been kids in the apartment and she was upset that the officers had their guns out, at which point she threw them out of the home. Sgt. Bullett explained to her that the officers had been looking for a perp. Sgt. Bullett did not recall if he was asked to provide the identification of his officers. Det. Ortiz and Det. Carbonell had their shields visible around their necks. § 87(2)(b) did not complain about the language used by Det. Carbonell. Sgt. Bullett did not observe his officers speak with any civilians other than § 87(2)(b). Sgt. Bullett observed his officers return to the house to give personal property of the defendants to an individual at § 87(2)(b). Sgt. Bullett did not hear Det. Carbonell curse or call § 87(2)(b) a “black bitch.” Sgt. Bullett never heard an officer curse and did not hear an officer threaten to arrest the civilians.

Consent to Search Form

- A request sent to Bronx Narcotics indicated that no consent to search form was on file for this incident (enc. 28). Per Operations Order 29, when officers gain consent from a person with an expectation of privacy of an address, as the detectives alleged in this incident, it is required that they have the person granting the search sign a consent to search form (enc. 1n-p).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of November 13, 2009, with regard to the incident (enc. 29).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (enc. 3).

Subject Officer(s) CCRB History

- Det. Ariel Ortiz has been a member of the service for six years and there are no substantiated CCRB allegations against him (enc. 2C).
- Det. Rolando Carbonell has been a member of the service for six years and there is one substantiated CCRB allegations against him (enc. 2A-2B)
 - 200403560- Discourtesy: Command Discipline recommended; received instructions by NYPD.

Conclusion

Identification of Subject Officers

- Det. Carbonell and Det. Ortiz both acknowledged entering § 87(2)(b). Det. Carbonell stated he had primary interaction with § 87(2)(b) § 87(2)(g)
[REDACTED]

Investigative Findings and Recommendations

Allegations Not Pled

- § 87(2)(b) and § 87(2)(b) made several allegations based on statements they allegedly heard from § 87(2)(b) and § 87(2)(b) but did not observe themselves. § 87(2)(b), § 87(2)(g)
[REDACTED]
[REDACTED]

Allegation A- Abuse of Authority: Det. Rolando Carbonell threatened to arrest § 87(2)(b) and individuals.

Per NYPD Procedure 208-01 (enc. 1q), in order to make an arrest, an officer must have reasonable cause to believe that the offence was committed. § 87(2)(g)

§ 87(2)(b) § 87(2)(b) alleged that Det. Carbonell threatened to arrest her and all the other civilians, which all of the officers denied. § 87(2)(b)

§ 87(2)(b) Additionally, § 87(2)(b) an independent witness, also alleged that Det. Carbonell threatened to arrest § 87(2)(b) while in the yard. § 87(2)(g)

Therefore, it is recommended that **Allegation A** be **substantiated**.

Allegation B- Abuse of Authority: Det. Rolando Carbonell threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that § 87(2)(b) opened the front door of § 87(2)(b) and Det. Carbonell told him not to move or he would shoot him. § 87(2)(b) did not provide a statement to the CCRB despite exhaustive contact attempts. It is recommended that **Allegation B** be closed as **Victim Uncooperative**.

Allegation C- Abuse of Authority: Det. Rolando Carbonell entered and searched § 87(2)(b)

Allegation D- Abuse of Authority: Det. Ariel Ortiz entered and searched § 87(2)(b)

It is undisputed that Det. Carbonell and Det. Ortiz entered § 87(2)(b) Det. Carbonell and Det. Ortiz stated that they received verbal consent to enter § 87(2)(b) from § 87(2)(b) who answered the door and let both officers enter. Both officers stated that they would not have entered the home without receiving permission to do so. § 87(2)(b), § 87(2)(g)

Only § 87(2)(b) observed someone § 87(2)(b) refuse to allow the officers inside. § 87(2)(b), § 87(2)(g)

The detectives and § 87(2)(b) observed a black male flee an impending arrest and run towards/up the steps of § 87(2)(b) The arrest and complaint reports and the officers' memo books confirm this allegation, though the civilians stated that no one ran into the house. Within a matter of minutes, both detectives entered the location. In § 87(2)(b)'s 911 call, she stated, "You need a warrant," followed by an unknown male officer stating "actually, if somebody runs into your house, we don't need a warrant. Learn your law." § 87(2)(g)

§ 87(2)(g)

Payton v. New York, 445 US 573, 1002 S. Ct. 1371, 63 L.Ed.2d 639 (1980) (enc. 1A, B, I) states that “hot pursuit” permits a warrantless entry under the premise that a suspect may not thwart a proper arrest set in motion in a public place.

§ 87(2)(g)

As such, it is recommended that **Allegations C and D** be exonerated.

Allegation E- Discourtesy: Det. Rolando Carbonell spoke obscenely to § 87(2)(b) and individuals.

§ 87(2)(b) stated that in response to her asking the officers who they were, Det. Carbonell responded, “None of your fucking business.” § 87(2)(b) said § 87(2)(b) asked the officers what they were doing there and that Det. Carbonell told her to mind her “fucking business.” § 87(2)(b) stated that Det. Carbonell cursed at § 87(2)(b) repeatedly, but he could not remember what was specifically said. § 87(2)(b), § 87(2)(b) and § 87(2)(b) also heard Det. Carbonell use the word “fuck” in multiple other connotations throughout the incident, but were different in wording and context. In her 911 call, § 87(2)(b) alleged that Det. Carbonell said he didn’t have to tell her “shit” and that he was “still cursing,” however, no cursing can be heard during the call. § 87(2)(b) did not hear anyone curse during the incident, however he also never saw the officers inside of the gate, where the discourtesies allegedly occurred. All the officers denied that Det. Carbonell cursed during the incident. § 87(2)(g)

It is recommended that **Allegation E** be unsubstantiated.

Allegation F- Abuse of Authority: Det. Rolando Carbonell refused to provide his name and shield number to § 87(2)(b)

Patrol Guide Section, 203-09 (enc. 1H) instructs an officer to “Courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so. Allow the person ample time to note this information.” § 87(2)(b) and § 87(2)(b) alleged that Det. Carbonell refused to provide his name and shield to § 87(2)(b) and instructed her to speak with his superior. Det. Carbonell alleged that § 87(2)(b) never asked for his name or shield information. In § 87(2)(b)’s 911 call, Sgt. Bullett clearly states “I’m his supervisor, I’ll provide you with all the information you need,” followed by § 87(2)(b) stating, “Why couldn’t he give it to me?” Sgt. Bullett responded that he wanted the officer to leave so as not to escalate the situation. Sgt. Bullett’s memo book stated that all MOS were identified to the civilians. § 87(2)(b) had already provided Det. Ortiz’s shield number and Sgt. Bullett’s name during the same phone call. § 87(2)(g)

However, § 87(2)(b) never mentioned in her statements that Sgt. Bullett offered to provide her with the information. § 87(2)(b), § 87(2)(g)

She responded to Sgt. Bullett’s offer by asking why Det. Carbonell could not provide it. Similarly, § 87(2)(b) testified that although Sgt. Bullett apologized on Det. Carbonell’s behalf, she wanted a personal apology from Det. Carbonell. Although Sgt. Bullett could not recall whether he was asked to provide his officers’ information, the 911 call and Sgt. Bullett’s memo book notes prove that he was aware of § 87(2)(b)’s request for Det. Carbonell’s information and indicate that he provided it. Sgt. Bullett told Det. Carbonell to leave the location in order to deescalate the situation and personally took responsibility for providing § 87(2)(b) with the information that she

needed. § 87(2)(g) thus it is recommended that **Allegation F** be **unsubstantiated**.

Allegation G- Abuse of Authority: Det. Rolando Carbonell drew his gun.

Only § 87(2)(b) stated that Det. Carbonell had his gun drawn as he was exiting § 87(2)(b) and he could not provide additional details about where Det. Carbonell stood or what his actions were. Both detectives confirmed that Det. Carbonell had his gun drawn inside of the home and that he holstered it as he was leaving the building. Det. Carbonell stated that he had his gun drawn because based on his experience, in instances where officers chase a perp, the perps are often going to retrieve weapons; additionally he did not know who else was inside of the house. Det. Carbonell observed the unknown perp go up the steps to § 87(2)(b) after the perp fled police custody, having been stopped for allegedly selling drugs. *PD vs. Gilner*, (Oath Index 955/00) states that the NYPD grants an officer the right to draw their firearm as long as he has a reasonable fear for his safety (enc. 1c-g). § 87(2)(g)

It is recommended that **Allegation G** be **exonerated**.

Allegation H- Offensive Language: Det. Rolando Carbonell made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) stated that when Det. Carbonell returned to § 87(2)(b) a second time, he called her a “black bitch.” No other civilians or officers interviewed heard Det. Carbonell make any remarks based upon race during the incident. § 87(2)(g)

It is recommended that **Allegation H** be **unfounded**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date